

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1843

By: Fugate

AS INTRODUCED

An Act relating to community development; enacting the Community Quality of Life Enhancement Act; making legislative findings; creating the Community Quality of Life Enhancement Revolving Fund; specifying purpose of fund; providing for authorized expenditures; providing for apportionment of revenues; imposing maximum balance for fund; providing for apportionment of revenue in excess of maximum balance amount; providing for noncodification; providing for codification; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

This act shall be known and may be cited as the "Community Quality of Life Enhancement Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 9101 of Title 62, unless there is created a duplication in numbering, reads as follows:

The Legislature finds that communities within the state would benefit from access to additional funding sources to promote a high

1 quality of life. Such funding should be utilized by the communities
2 based on an allocation system using a per capita method.

3 SECTION 3. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 9102 of Title 62, unless there
5 is created a duplication in numbering, reads as follows:

6 Local communities shall establish a board in order to make
7 applications to the Oklahoma Department of Commerce for available
8 funds pursuant to the provisions of this act.

9 SECTION 4. NEW LAW A new section of law to be codified
10 in the Oklahoma Statutes as Section 9103 of Title 62, unless there
11 is created a duplication in numbering, reads as follows:

12 The monies in the Community Quality of Life Enhancement
13 Revolving Fund may be utilized by eligible communities for:

- 14 1. Infrastructure improvements that impact quality of life;
- 15 2. Parks and recreational facilities;
- 16 3. Public transportation enhancements;
- 17 4. Cultural and community centers;
- 18 5. Public art and beautification; and
- 19 6. Environmental conservation projects.

20 SECTION 5. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 9104 of Title 62, unless there
22 is created a duplication in numbering, reads as follows:

23 The expenditures from the Community Qualify of Life Enhancement
24 Revolving Fund and other expenditures governed by this act, if made

1 in accordance with the requirements of this act, shall be construed
2 as an expenditure of public funds in furtherance of governmental
3 functions and for the purpose of conferring general and uniform
4 benefits resulting from the expenditures upon the residents and
5 other legal entities located in eligible communities.

6 SECTION 6. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 9105 of Title 62, unless there
8 is created a duplication in numbering, reads as follows:

9 There is hereby created in the State Treasury a revolving fund
10 for the Oklahoma Department of Commerce to be designated the
11 "Community Quality of Life Enhancement Revolving Fund". The fund
12 shall be a continuing fund, not subject to fiscal year limitations,
13 and shall consist of all monies received by the Oklahoma Department
14 of Commerce pursuant to Section 7 of this act. All monies accruing
15 to the credit of said fund are hereby appropriated and may be
16 budgeted and expended by the Oklahoma Department of Commerce for the
17 purpose of making allocations to eligible communities to implement
18 the provisions of this act. Expenditures from said fund shall be
19 made upon warrants issued by the State Treasurer against claims
20 filed as prescribed by law with the Director of the Office of
21 Management and Enterprise Services for approval and payment.

22 SECTION 7. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 9106 of Title 62, unless there
24 is created a duplication in numbering, reads as follows:

1 A. Funding for the Community Quality of Life Enhancement

2 Revolving Fund shall be derived from the income tax revenue which is
3 attributable to the increment of twenty-five hundredths of one
4 percent (0.0025) of the highest rate of tax imposed on the taxable
5 income of individuals pursuant to Section 2355 of Title 68 of the
6 Oklahoma Statutes.

7 B. The balance of the Community Quality of Life Enhancement

8 Fund shall not exceed Two Hundred Fifty Million Dollars
9 (\$250,000,000.00).

10 C. All revenue that would otherwise be apportioned to the Fund

11 once the maximum fund balance prescribed by this section is reached
12 shall be apportioned according to the requirements of Section 2352
13 of Title 68 of the Oklahoma Statutes.

14 SECTION 8. This act shall become effective July 1, 2025.

15 SECTION 9. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

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